

26STCV12618 26STCV12618

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Case Number: 26STCV12618 Hearing Date: September 17, 2026 Dept: 514

The Woodlands

Group, Inc. v. T-Mobile USA, Inc.

26STCV12618

Defendant's Motion to Dismiss or Stay

Tentative Ruling

The motion is granted.

Background

This case arises out of a contract for telecommunication services.

On April 20, 2026, The Woodlands Group, Inc. ("Plaintiff") filed the complaint in this action against T-Mobile USA, Inc. ("Defendant"), Robert Keeler, and Does 1 through 50, asserting causes of action for (1) breach of contract, (2) breach of implied covenant of good faith and fair dealing, (3) tortious interference with prospective economic advantage, (4) defamation (libel and slander), (5) negligent misrepresentation, (6) conversion, (7) unjust enrichment, (8) quantum meruit, and (9) negligence.

On September 10, 2026, Defendant Keeler filed an answer.

On July 27, 2026,

Defendant filed this motion to dismiss or stay the action. Plaintiff filed an opposition on September 2, and Defendant filed a reply on September 10.

No trial date has
been set.

Legal
Standard

Even
when a court has subject matter and personal jurisdiction, the court may stay
or dismiss the action on the ground of inconvenient forum. (Code
Civ. Proc., § 418.10, subd. (a)(2); 1 Weil & Brown, California Practice
Guide: Civil Procedure Before Trial (2026), ¶ 3:407.)

Code of
Civil Procedure section 410.30, subdivision (a), provides:

“When a
court finds that in the interest of substantial justice an action should be
heard in a forum outside this state, the court shall stay or dismiss the action
in whole or in part on any conditions that may be just.”

Section
410.30 codifies the common law doctrine of forum non
conveniens. Forum non conveniens is not a jurisdictional doctrine;
rather, it is “an equitable doctrine invoking the discretionary power of a
court to decline to exercise the jurisdiction [to stay or dismiss] it has over
a transitory cause of action when it believes that the action may be more
appropriately and justly tried elsewhere.” (Stangvik v. Shiley
Inc. (1991) 54 Cal.3d 744, 751; In re Christopher B. (1996) 43
Cal.App.4th 551, 559.)

Discussion

The complaint in
this matter is based on a contract between Plaintiff and Defendant referred to
as the “Master Agreement,” a copy of which is attached to the complaint.

Paragraph 11.6 of
the Master Agreement provides:

“Governing Law. This Agreement will
be governed in all respects by, and construed and enforced in accordance with,
the laws of the state of Washington without regard to any rules governing
conflicts of laws. The parties consent to the exclusive jurisdiction over and
venue in the state and federal courts located in King County, Washington.”

Defendant now
moves to stay or dismiss this action based on the forum selection provisions of
paragraph 11.6 of the Master Agreement.

The law in this area is well
established. Forum selection clauses are
presumed to be valid. (EpicentRx,
Inc. v. Super. Ct. (2025) 18 Cal.5th 58, 67.) A party seeking to resist enforcement of a
forum selection clause bears the burden of showing that enforcement would be,
under the circumstances of the case, unfair or unreasonable. (Richtek USA, Inc. v. uPI Semiconductor Corp.
(2015) 242 Cal.App.4th 651, 661; Trident Labs, Inc. v. Merrill Lynch
Commercial Finance Corp. (2011) 200 Cal.App.4th 147, 153-154; Miller-Leigh
LLC v. Henson (2007) 152 Cal.App.4th 1143, 1149.)

“Mere inconvenience or additional
expense is not the test of unreasonableness ... of a mandatory forum selection
clause.” (Olinick v. BMG Entertainment (2006) 138 Cal.App.4th at 1294
[citations omitted].) In addition, a forum
selection clause is not unenforceable merely because it is “contained in a
contract of adhesion and was not the subject of bargaining.” (Cal-State Business Products &
Services, Inc. v. Ricoh (1993) 12 Cal.App.4th 1666, 1679.) But a forum selection clause may be
unenforceable if it would be contrary to a strong California public policy or
result in the loss of the protection of statutory provisions enacted to protect
California citizens. (EpicentRx,
supra, 18 Cal.5th at p. 75; G Companies Mgmt., LLC v. LREP Arizona, LLC (2023)
88 Cal.App.5th 342, 353-355; see also 1 Weil & Brown, supra, ¶
3:185.)

In opposition to the motion,
Plaintiff argues primarily that enforcement of the forum selection clause in
the Master Agreement would violate Code of Civil Procedure section 410.42. That statute provides:

“(a) The following provisions of a contract between the contractor and a subcontractor with principal offices in this state, for the construction of a public or private work of improvement in this state, shall be void and unenforceable:

(1) A provision which purports to require any dispute between the parties to be litigated, arbitrated, or otherwise determined outside this state.

(2) A provision which purports to preclude a party from commencing such a proceeding or obtaining a judgment or other resolution in this state or the courts of this state.

(b) For purposes of this section, “construction” means any work or services performed on, or materials provided for, a work of improvement, as defined in Section 8050 of the Civil Code, and for which a lien may be claimed pursuant to Section 8400 of the Civil Code (whether or not a lien is in fact claimed) or for which such a lien could be claimed but for Section 8160 of the Civil Code.”

The evidence in the record, however, does not establish that the Master Agreement is a contract between a contractor and a subcontractor. The agreement itself indicates that it is a contract for construction services. Paragraph 9.2 prohibits Plaintiff from subcontracting any of the work without Defendant’s written consent. No extrinsic evidence is provided. And in the complaint Plaintiff alleges it contracted with Defendant for telecommunications construction and maintenance services; nothing in the complaint asserts that Plaintiff was a subcontractor for Defendant. (See Compl., ¶¶ 11-13.)

Section 410.42 does not bar enforcement of the forum selection clause.

Next, Plaintiff argues relatively briefly (1) that enforcement violates public policy, (2) that contract is one of adhesion, and (3) that Plaintiff’s tort claims are grounded in and should not be swept out of California.

Of course, courts

will not enforce a forum selection clause if the result “would substantially diminish the rights of California residents in a way that violates our state's public policy.” (Verdugo v. Alliantgroup, L.P. (2015) 237 Cal.App.4th 141, 147.) But Plaintiff does not provide any evidence or substantial legal argument to support these assertions. Plaintiff has not shown that the Master Agreement (or any part of it) is unconscionable or otherwise not valid and enforceable. On this record, Plaintiff has not carried its burden to show that enforcement of the forum selection clause is unfair or unreasonable.

The motion is granted.

Defendant is dismissed, without prejudice,
so that Plaintiff may pursue its claims in the forum chosen by the parties.

Conclusion

The Court GRANTS the motion of Defendant
T-Mobile USA, Inc. to dismiss or stay.

The Court DISMISSES the complaint WITHOUT
PREJUDICE as to Defendant T-Mobile USA, Inc. ONLY.

Moving

Party

is to provide notice.